

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Olga Bentin	Team: Squad #04	CCRB Case #: 201710171	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 12/01/2017 9:30 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 6/1/2019	Precinct: 121		
Date/Time CV Reported Sat, 12/02/2017 9:00 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 12/08/2017 11:31 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Tina Stuart	03291	927973	WARRSEC
2. An officer			WARRSEC
3. DT3 Carlos Corporan	3305	948813	WARRSEC
4. DT3 Daniel Golat	482	950506	WARRSEC
5. DT3 Jason Ribeiro	2918	951134	WARRSEC
6. Officers			WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Marcin Drozniak	03463	938404	WARRSEC
2. DT3 Jose Dejesus	07401	901430	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Jason Ribeiro	Force: Detective Jason Ribeiro pointed his gun at § 87(2)(b)	A . Exonerated
B . Officers	Discourtesy: Officers spoke discourteously to § 87(2)(b)	B . Officer(s) Unidentified
C . Officers	Abuse: Officers threatened § 87(2)(b) with the use of force.	C . Officer(s) Unidentified
D . DT3 Carlos Corporan	Abuse: Detective Carlos Corporan entered § 87(2)(b) in Staten Island.	D . Substantiated
E . DT3 Jason Ribeiro	Abuse: Detective Jason Ribeiro entered § 87(2)(b) in Staten Island.	E . Substantiated
F . DT3 Daniel Golat	Abuse: Detective Daniel Golat entered § 87(2)(b) in Staten Island.	F . Substantiated
G . DT3 Carlos Corporan	Abuse: Detective Carlos Corporan searched § 87(2)(b) in Staten Island.	G . Substantiated
H . DT3 Jason Ribeiro	Abuse: Detective Jason Ribeiro searched § 87(2)(b) in Staten Island.	H . Substantiated

Officer(s)	Allegation	Investigator Recommendation
I . An officer	Abuse: An officer damaged § 87(2)(b)'s property.	I . Officer(s) Unidentified
J . DT3 Jason Ribeiro	Abuse: Detective Jason Ribeiro threatened to damage § 87(2)(b)'s property.	J . Substantiated
K . DT3 Daniel Golat	Force: Detective Daniel Golat pointed his gun at § 87(2)(b).	K . Exonerated
L . DT3 Carlos Corporan	Abuse: Detective Carlos Corporan refused to provide his name and shield number to § 87(2)(b).	L . Unsubstantiated
M . DT3 Jason Ribeiro	Abuse: Detective Jason Ribeiro refused to provide his name and shield number to § 87(2)(b).	M . Unsubstantiated
N . DT3 Daniel Golat	Abuse: Detective Daniel Golat refused to provide his name and shield number to § 87(2)(b).	N . Unsubstantiated
O . Officers	Abuse: Officers refused to provide their names and shield numbers to § 87(2)(b).	O . Alleged Victim Uncooperative
P . DT3 Tina Stuart	Discourtesy: Detective Tina Stuart spoke discourteously to § 87(2)(b).	P . Alleged Victim Uncooperative
Q . DT3 Tina Stuart	Abuse: Detective Tina Stuart threatened to arrest § 87(2)(b).	Q . Alleged Victim Uncooperative
R . DT3 Carlos Corporan	Abuse: Detective Carlos Corporan threatened to arrest § 87(2)(b).	R . Alleged Victim Uncooperative
S . DT3 Daniel Golat	Abuse: Detective Daniel Golat threatened to arrest § 87(2)(b).	S . Alleged Victim Uncooperative
T . DT3 Tina Stuart	Abuse: Detective Tina Stuart threatened to arrest § 87(2)(b).	T . Alleged Victim Unavailable
U . DT3 Carlos Corporan	Abuse: Detective Carlos Corporan threatened to arrest § 87(2)(b).	U . Alleged Victim Unavailable
V . DT3 Daniel Golat	Abuse: Detective Daniel Golat threatened to arrest § 87(2)(b).	V . Alleged Victim Unavailable
W . DT3 Tina Stuart	Abuse: Detective Tina Stuart threatened to arrest individuals.	W . Victim Unidentified
X . DT3 Carlos Corporan	Abuse: Detective Carlos Corporan threatened to arrest individuals.	X . Victim Unidentified
Y . DT3 Daniel Golat	Abuse: Detective Daniel Golat threatened to arrest individuals.	Y . Victim Unidentified
§ 87(4-b) § 87(2)(g)		

Case Summary

On December 2, 2017, § 87(2)(b) contacted the IAB Command Center and filed this complaint. On December 8, 2017, this complaint was received at the CCRB.

On December 1, 2017, at approximately 9:30 a.m., several police officers, identified by the investigation as Det. Carlos Corporan, Det. Jason Ribeiro, Det. Daniel Golat, and Det. Jose Dejesus, all of Staten Island Warrant Squad, entered § 87(2)(b) in Staten Island, a two-family home. Det. Ribeiro pointed his gun at § 87(2)(b) (**Allegation A: Force, exonerated**). Unidentified officers told § 87(2)(b) “Shut the fuck up...Do not fucking move or I will shoot you,” “Shut the fuck up,” § 87(2)(b) knows why we are here,” “We don’t need a fucking warrant,” and “We don’t give a fuck,” (**Allegation B: Discourtesy, and Allegation C: Abuse of Authority, officers unidentified**).

Det. Corporan, Det. Ribeiro, and Det. Golat entered § 87(2)(b) (**Allegations D, E, and F: Abuse of Authority, substantiated**). Det. Corporan and Det. Ribeiro searched § 87(2)(b) (**Allegations G and H: Abuse of Authority, substantiated**).

Inside of § 87(2)(b) an unidentified officer damaged § 87(2)(b) s bedroom door (**Allegation I: Abuse of Authority, officer unidentified**).

Det. Ribeiro threatened to break down § 87(2)(b) s door (**Allegation J: Abuse of Authority, substantiated**).

Det. Golat pointed his gun at § 87(2)(b) (**Allegation K: Force, exonerated**).

Det. Corporan, Det. Ribeiro, and Det. Golat, ignored multiple requests by § 87(2)(b) for their names and shields (**Allegations L, M, and N: Abuse of Authority, unsubstantiated**). Unidentified officers ignored multiple requests by § 87(2)(b) for their names and shields (**Allegation O: Abuse of Authority, § 87(2)(g)**).

Det. Stuart spoke discourteously to § 87(2)(b) (**Allegation P: Discourtesy, victim uncooperative**). Det. Stuart, Det. Corporan, and Det. Golat told § 87(2)(b) “We will arrest you all if you come any closer” (**Allegations Q, R, and S: Abuse of Authority, victim uncooperative**). Det. Stuart, Det. Corporan, and Det. Golat also directed this threat to § 87(2)(b) (**Allegations T, U, and V: Abuse of Authority, victim unavailable**), and to unidentified individuals (**Allegations W, X, and Y: Abuse of Authority, victim unidentified**).

§ 87(4-b), § 87(2)(g)

§ 87(2)(b) was arrested § 87(2)(b) (BR 03). No other arrests or summonses resulted.

§ 87(2)(b) provided the investigation with several videos she recorded of the incident, some of which are embedded in the analysis below. The original video recordings can be viewed from IAs 86-91. SnagIt clips from these videos are embedded below and are linked in IAs 256-259 (BR 05-08).

Findings and Recommendations

Allegation (D) Abuse of Authority: Detective Carlos Corporan entered § 87(2)(b) in Staten Island.

Allegation (E) Abuse of Authority: Detective Jason Ribeiro entered § 87(2)(b) in Staten Island.

Allegation (F) Abuse of Authority: Detective Daniel Golat entered § 87(2)(b) in Staten Island.

Allegation (G) Abuse of Authority: Detective Carlos Corporan searched § 87(2)(b)
§ 87(2)(b), in Staten Island.

Allegation (H) Abuse of Authority: Detective Jason Ribeiro searched § 87(2)(b)
§ 87(2)(b), in Staten Island.

§ 87(2)(g)

The following facts are undisputed.

§ 87(2)(b) is a house divided into two apartments, one on the first floor and one on the second floor. There is a basement and an attic, but those areas are used for storage only. The house has one main entrance, which opens into a common hallway with stairs leading to the second floor. There are two doorbells by the front door, one corresponding to each apartment. Each doorbell is labeled with its respective apartment, and there are two mailboxes mounted near the door. A waist-high metal fence encloses the entire property.

§ 87(2)(b) and her boyfriend, § 87(2)(b) rent the § 87(2)(b) floor, or § 87(2)(b) of § 87(2)(b)

§ 87(2)(b) lives on the § 87(2)(b) floor, or § 87(2)(b) of § 87(2)(b) § 87(2)(b) s boyfriend, § 87(2)(b) (BR 02), was staying with § 87(2)(b) at the time of this incident.

§ 87(2)(b) was on parole for § 87(2)(b) (BR 03). § 87(2)(b) violated his parole § 87(2)(b)

§ 87(2)(b) The conditions of § 87(2)(b) s parole required that he live with his uncle at § 87(2)(b) in Staten Island, but since violating his parole, § 87(2)(b) stayed with § 87(2)(b) to avoid parole officers. § 87(2)(b) did not list § 87(2)(b) s residence on any official paperwork and did not receive mail there.

§ 87(2)(f) Parole Officer Samlal happened to see § 87(2)(b) knocking on the front door of § 87(2)(b) and entering once the door was opened. Parole Officer Samlal recognized § 87(2)(b) because § 87(2)(b) s case is assigned to his partner, Parole Officer Lisa Dipaolo.

Parole Officer Samlal did not know the layout of § 87(2)(b) did not know who resided there, and performed no searches to find out more about the location, as he did not feel there was sufficient time to do so. Parole Officer Samlal did not see where inside the house § 87(2)(b) went. Police Officer Samlal conferred by phone with his supervisor, Senior Parole Officer Patricia Mcleary, and Parole Officer Dipaolo. Parole Officer Dipaolo texted Parole Officer Samlal a picture of § 87(2)(b) and his pedigree information.

Parole Officer Samlal then called Det. Carlos Corporan (BR 16) of the NYPD's Warrant Section, who he knew from having worked together previously, and requested his assistance in apprehending § 87(2)(b) Parole Officer Samlal told Det. Corporan that he had seen § 87(2)(b) who had an active parole warrant, enter § 87(2)(b) Parole Officer Samlal forwarded the image of § 87(2)(b) to Det. Corporan.

It is also not disputed that Parole Officer Samlal was aware that § 87(2)(b) s cousin, § 87(2)(b), was murdered several weeks prior to December 1, 2017 (BR 48), and had heard from fellow parole officers that § 87(2)(b) planned to retaliate against the murderer.

§ 87(2)(g) Parole Officer Samlal said that he had no details as to when, how, or against whom § 87(2)(b) would retaliate, never had any indication that § 87(2)(b) possessed a firearm, and never informed any members of the NYPD that § 87(2)(b) was armed. Det. Corporan claimed that both over the phone and once he arrived to the scene, Parole Officer Samlal told him that § 87(2)(b) was "very

dangerous,” “known to carry a firearm” because he was involved in a gang-related dispute over the death of § 87(2)(b) that § 87(2)(b) wanted to retaliate, and that there “might be a shooting soon.” Other police officers interviewed denied having any information about a firearm or about § 87(2)(b)’s criminal history. Others claimed that they did, but of these, few could recall the precise source of this information. § 87(2)(g)

It is not disputed that approximately five minutes after Parole Officer Samlal’s call, Det. Corporan arrived to the scene with Det. Tina Stuart and Det. Jason Ribeiro. A second team of warrant officers, including Det. Jose Dejesus, Det. Daniel Golat, and Det. Marcin Drozniak, responded shortly afterwards. Parole Officer David Fernandez (BR 15) also arrived to the scene after Det. Corporan called him § 87(2)(e)

It is not disputed that Parole Officer Samlal pointed out § 87(2)(b) and confirmed that to his knowledge § 87(2)(b) was still inside the location. It is not disputed that neither the parole officers nor the NYPD officers made any efforts to gather more information about § 87(2)(b) or about the nature of § 87(2)(b) prior to entering.

Officers knocked on the door of the house. Det. Corporan and Det. Ribeiro both said they heard footsteps and doors closing inside the house in response to their knocking. Det. Corporan pushed open the front door, which was not locked, and entered the location, followed by Det. Golat and Parole Officer #####. Det. Stuart and Det. Drozniak did not enter the house itself, but entered the backyard of the property to cover the rear of the house.

Det. Corporan, Det. Ribeiro, and Det. Golat went to the second floor. There are varying accounts as to what exactly happened as they approached the second floor. § 87(2)(b) (BR 02) and Det. Corporan said that § 87(2)(b) was already coming downstairs from the second floor to the first when officers first entered § 87(2)(b). Det. Ribeiro (BR 17) and Det. Golat (BR 16) said that upon entry to the first floor, they heard unspecified noises from the second floor, leading them to believe a person was inside. Det. Ribeiro went to the second floor and repeatedly ordered whoever was within to come out. After five minutes, § 87(2)(b) emerged with his hands up. After seeing that § 87(2)(b) was not § 87(2)(b) the officers told § 87(2)(b) to wait outside while they finished their parole warrant investigation. It is generally undisputed that Det. Dejesus (BR 21) hung back and remained on the porch of § 87(2)(b) at this time. Det. Dejesus later did eventually cross the threshold and enter § 87(2)(b) but remained standing close to the front door.

Det. Corporan, Det. Ribeiro, and Det. Golat then went into apartment § 87(2)(b). Det. Corporan and Det. Ribeiro said all three of them spent one to two minutes checking all areas of the apartment where a person could hide, including behind the doors and underneath furniture. Det. Golat said he entered apartment § 87(2)(b) but stood by the front door of the apartment and did not search it; § 87(2)(g)

Det. Ribeiro, Det. Golat, and Parole Officer Fernandez then went to the basement of the house before returning to the first floor hallway.

As will be discussed in greater detail below, § 87(2)(b) eventually emerged from the first floor apartment and was apprehended. Officers did not enter the § 87(2)(b) floor apartment. A parole warrant is the functional equivalent of an arrest warrant for the purpose of having probable cause to apprehend an individual. People v. Diaz, 618 N.Y.S.2d 1000 (1994) (BR 23) A

parole warrant carries with it a limited authority to enter a dwelling in which the suspect lives and where the officers reasonably believe the suspect is within. If there is a reasonable belief that the suspect is present and admittance is not allowed after the required notice is given, forcible entry is permitted. People v. Paige, 77 A.D.3d 1193 (2010) (BR 49) Without a search warrant, an officer may only permissibly enter the dwelling of a third party to execute a parole warrant with the consent of an authorized party or under exigent circumstances. Payton v. New York, 445 U.S. 573 (1993) (BR 27) In determining whether exigent circumstances exist, the courts consider the following factors: a) the gravity or violent nature of the offense with which the suspect is to be charged, b) whether the suspect is reasonably believed to be armed, c) a clear showing of probable cause to believe the suspect committed the crime, d) strong reason to believe that the suspect is in the premises being entered, e) a likelihood that the suspect will escape if not swiftly apprehended, and f) the peaceful circumstances of the entry. People v. McBride, 14 N.Y.3d 440 (2010) (BR 29) Absence of one or more factors does not preclude a finding of exigent circumstances. People v. Green, 182 A.D.2d 704 (1992) (BR 30) Tenants of apartments, as well as any other leased dwelling units, have an expectation of privacy. U.S. v. Elliott, 50 F.3d 180 (1995) (BR 19). A valid warrant for the arrest of one person may not serve as the basis for authorizing police to conduct an otherwise illegal search of the premises of a second person. People v. Hernandez, 218 A.D.2d 167 (BR 48) A front yard, porch, or backyard, completely fenced in and located in close proximity to a home, is within its curtilage. The curtilage of the home is part of the home itself. People v. Morris, 126 A.D.3d 813 (2015) (BR 47) In People v. Garvin, 30 N.Y.3d 174 (2017) (BR 51), the common hallway of a two-family home was not considered part of a private home.

In entering the yard surrounding § 87(2)(b) Det. Drozniak and Det. Stuart did no more than any member of the public might do to reach the front door of the location and knock. While Det. Dejesus entered the common hallway of § 87(2)(b) a two-family home, such a hallway is not considered part of a private residence as per Garvin. As such, no entry has been pleaded against Det. Drozniak, Det. Stuart, and Det. Dejesus.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

As such, it is recommended that **Allegations D through H** be closed as **substantiated**.

Allegation (A) Force: Detective Jason Ribeiro pointed his gun at § 87(2)(b)
Allegation (B) Discourtesy: Officers spoke discourteously to § 87(2)(b)
Allegation (C) Abuse of Authority: Officers threatened § 87(2)(b) **with the use of force.**

From inside apartment § 87(2)(b) at § 87(2)(b) § 87(2)(b) (BR 02) overheard § 87(2)(b) in the hallway yelling something like, “Why did you put a gun to my head?” An officer who § 87(2)(b) could not identify said, “Shut the fuck up...Do not fucking move or I will shoot you.” Another officer – § 87(2)(b) again did not see which, and did not know if it was the same officer who cursed previously or a different one – also told § 87(2)(b) “Shut the fuck up,” § 87(2)(b) knows why we are here,” “We don’t need a fucking warrant,” and “We don’t give a fuck.”

In a brief telephone statement, § 87(2)(b) (BR 12) said that he was coming down the steps from the § 87(2)(b) floor of § 87(2)(b) to the first when officers entered. An officer, identified by the investigation as Det. Ribeiro, then pointed his gun at § 87(2)(b) asking him to move to the side. § 87(2)(b) abruptly terminated his phone statement, and did not ultimately cooperate with the investigation (BR 11). § 87(2)(b) did not himself allege any profanity or threat of force.

§ 87(2)(b) (BR 01) was at the store when officers entered the location. § 87(2)(b) thus did not witness this portion of the incident, and the videos she recorded of it did not capture it.

Det. Ribeiro (BR 17) acknowledged pointing his gun at § 87(2)(b) Det. Ribeiro did so because § 87(2)(b) delayed in emerging from apartment § 87(2)(b) and Det. Ribeiro could not see who was behind the door. Det. Ribeiro said that prior to entering the location, he had heard from Parole Officer Samlal that § 87(2)(b) was suspected of carrying a firearm because he wanted to retaliate for the death of his cousin. Det. Ribeiro also claimed that Parole Officer Samlal told him that § 87(2)(b) was a “violent felon,” though he did not further elaborate or indicate specifically why he was on parole.

None of the officers interviewed heard Det. Ribeiro use profanity or threaten to shoot § 87(2)(b) § 87(2)(g)

Police officers may draw and point their guns as a precautionary measure and safety response. *People v. Livigni*, 88 A.D.2d 386 (1982) (BR 32) The decision to display and draw a gun should be based on an articulable belief that the potential for serious physical injury is present. Patrol Guide 221-01 (BR 50).

§ 87(2)(g)

§ 87(2)(g)

As such, it is recommended that **Allegation A** be closed as **exonerated**.

§ 87(2)(g)

It is recommended that **Allegations B and C** be closed as **officers unidentified**.

Allegation (I) Abuse of Authority: An officer damaged § 87(2)(b)'s property.

§ 87(2)(b) (BR 01) said that when she returned from the store, she asked Det. Dejesus, who was standing on the front porch of § 87(2)(b) if she could go inside. Det. Dejesus did not allow her to do so. § 87(2)(b) heard a commotion, or banging and stomping sounds, coming from apartment § 87(2)(b). After approximately 10 minutes, Det. Ribeiro, Det. Golat, and Det. Corporan left apartment § 87(2)(b) and approached apartment § 87(2)(b).

After this incident, § 87(2)(b) returned to her apartment and saw that her bedroom door, which had been locked when she left the house, had a circular hole approximately 20 inches in length, a photo of which she provided to the CCRB (BR 44).

There were no eyewitnesses to this allegation. § 87(2)(b) (BR 02) was downstairs in apartment § 87(2)(b) at the time it occurred, and confirmed that he heard a commotion, including items being tossed around or something being smashed, though he could not tell what was being smashed more specifically. The investigation was unable to establish contact with § 87(2)(b) (BR 13), who was also downstairs in apartment § 87(2)(b) with § 87(2)(b) § 87(2)(b) (BR 11) was uncooperative with the allegation.

Det. Ribeiro said that he, Det. Corporan, and Det. Golat entered every room in apartment § 87(2)(b). Det. Ribeiro denied breaking any door in the apartment, or seeing any officer do so. Det. Ribeiro did not believe any door of the apartment was locked, and denied seeing any preexisting damage to the apartment. Det. Corporan (BR 16) was consistent with Det. Ribeiro. Det. Golat (BR 18) claimed that he remained standing by the front door of apartment § 87(2)(b).

Det. Stuart (BR 19), Det. Drozniak (BR 20), Det. Dejesus (BR 21), and Parole Officer Fernandez (BR 15) all denied going into apartment § 87(2)(b) at the location.

§ 87(2)(g)

As such, it is recommended that **Allegation I** be closed as **officer unidentified**.

Allegation (J) – Abuse of Authority: Detective Jason Ribeiro threatened to damage § 87(2)(b)'s property.

It is undisputed that after leaving apartment § 87(2)(b) Det. Ribeiro, Det. Golat, and Det. Corporan returned downstairs. Det. Corporan left to go stand on the porch of § 87(2)(b) as he had twisted his ankle coming down the stairs at the location and needed to tend to his pain. Det. Dejesus then allowed § 87(2)(b) and § 87(2)(b) to go back into § 87(2)(b) § 87(2)(b) and § 87(2)(b) stood at the § 87(2)(b) floor landing and watched the officers. § 87(2)(b) at this time began recording on her cell phone.

Det. Ribeiro and Det. Golat went to the front door of apartment § 87(2)(b) where they began to knock on the door for several minutes, identifying themselves as officers and ordering § 87(2)(b) to open the door.

§ 87(2)(b)

§ 87(2)(b) (BR 01) said that during this time, Det. Ribeiro said, “If you are not going to open the door, we are going to break it down.”



2018-04-09_16-25-14.mp4

In the above video footage (BR 08), which § 87(2)(b) recorded on her cell phone and provided to the investigation, between 1:19 and 1:22 minutes, Det. Ribeiro says, “We are going to be here, and we will break the door.”

§ 87(2)(b) (BR 02) also alleged this, stating that it was this threat that prompted him to eventually open the door of apartment 1, step out into the hallway, and turn himself over to the officers.

As was previously discussed, § 87(2)(b) (BR 11) was uncooperative with the investigation. § 87(2)(g)

Det. Ribeiro (BR 17) initially did not remember threatening to break the door down, but, upon reviewing the video footage, acknowledged making this statement. Det. Ribeiro said this because, based on Parole Officer Samlal’s observations and the fact that § 87(2)(b) had not been found elsewhere in the house, that he must be in apartment 1, because § 87(2)(b) had not emerged voluntarily, and because Det. Ribeiro wanted to inform the people inside the apartment of what he was going to do next.

In order to effect an arrest on a parole warrant, an officer may enter any premises in which he reasonably believes the defendant to be present, unless premises are the dwelling of a third party who is not the subject of the arrest warrant, in which case the officer must obtain a search warrant. If an officer gives notice of his authority and purpose, or if after giving such notice he is not admitted, he may enter such premises, and by a breaking if necessary. NY CPL § 120.80 (BR 26). Police may not compel a suspect to open a door by threatening to violate the Fourth Amendment by announcing that they would break down the door if the occupants did not open the door voluntarily. People v. Garvin, 30 N.Y.3d 174 (2017) (BR 51)

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(g)

It is therefore

recommended that **Allegation J** be closed as **substantiated**.

Allegation (K) Force: Detective Daniel Golat pointed his gun at Allan Floyd.

It is undisputed that when § 87(2)(b) (BR 01) emerged from the apartment, Det. Golat pointed his gun at him. Det. Golat acknowledged doing so because he could not see § 87(2)(b) hands when § 87(2)(b) first exited the apartment, as they were slightly behind his back, though § 87(2)(b) raised them above his head when Det. Golat instructed him to do so. As was previously discussed, Det. Golat was amongst the second group of officers to arrive to the scene. Det. Golat said that when he arrived to the scene, another officer from Warrant Squad – Det. Golat could not recall who more specifically, and the investigation was unable to identify any

other officer who acknowledged relaying this information specifically to Det. Golat – that § 87(2)(b) was believed to be carrying a gun.

The moment when Det. Golat points his gun is not clearly captured on the video footage § 87(2)(b) provided (see aforementioned video file #2018-04-09_25-14), as § 87(2)(b) is positioned at the top of the stairs to the second floor.

Police officers may draw and point their guns as a precautionary measure and safety response. People v. Livigni, 88 A.D.2d 386 (1982) (BR 32) The decision to display and draw a gun should be based on an articulable belief that the potential for serious physical injury is present. Patrol Guide 221-01 (BR 50). Officers are entitled to rely on information received from a fellow officer, as this information is presumed to be reliable and accurate. People v. Powell, 101 A.D.3d 756 (2012) (BR 22)

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
As such, it is recommended

that **Allegation K** be closed as **exonerated**.

Allegation (L) Abuse of Authority: Detective Carlos Corporan refused to provide his name and shield number to § 87(2)(b)

Allegation (M) Abuse of Authority: Detective Jason Ribeiro refused to provide his name and shield number to § 87(2)(b)

Allegation (N) Abuse of Authority: Detective Daniel Golat refused to provide his name and shield number to § 87(2)(b)

Allegation (O) Abuse of Authority: Officers refused to provide their names and shield numbers to § 87(2)(b)

According to § 87(2)(b) while standing at the top of the stairs observing the encounter, she and § 87(2)(b) both asked all of the officers in the hallway, who she said included Det. Ribeiro, Det. Golat, Det. Corporan, and Parole Officer Fernandez, for their names and badge numbers. Only Parole Officer Fernandez responded to this request.

After § 87(2)(b) was apprehended, officers escorted him outside. § 87(2)(b) followed the officers. By this time, Det. Stuart, Det. Drozniak, Det. Ribeiro, Det. Golat, Det. Corporan, Det. Dejesus, and Parole Officer Fernandez were all in front of § 87(2)(b)

§ 87(2)(b) approached another unmarked van on scene, where Det. Dejesus was sitting, and asked for his name, which Det. Dejesus provided. Det. Dejesus was the sole officer on scene to provide his information to her.

§ 87(2)(b) said she repeatedly yelled that she wanted the officers' names and badge numbers, and believed she spoke loudly enough that all officers heard her request. § 87(2)(b) did not approach each officer individually to request this information. Det. Stuart, Det. Golat, and Det. Corporan held § 87(2)(b) by his arms and escorted him to a van parked near § 87(2)(b)

§ 87(2)(b) § 87(2)(b) followed Det. Stuart, yelling, “Excuse me, miss, excuse me, miss,” as she wanted to obtain her name or shield number; however, § 87(2)(b) did not explicitly ask Det. Stuart for this information.

As was previously discussed, § 87(2)(b) did not cooperate with this investigation. § 87(2)(b) (BR 02) confirmed that after he was escorted from the house, he heard § 87(2)(b) ask Det. Stuart, Det. Golan, and Det. Corporan for their names as they escorted him to the van, but they ignored her. § 87(2)(b) did not hear § 87(2)(b) ask for their shield numbers, or for the information of any other officers.

The video footage that § 87(2)(b) supplied captures portions of this incident.



2018-04-09_16-17-55.mp4

At the beginning of the above video (BR 05), § 87(2)(b) is standing on the porch of § 87(2)(b); at 00:23 seconds, § 87(2)(b) goes inside the location; and at 00:46 seconds, she seems to step back onto the porch. § 87(2)(b) at 00:01 minutes asks, “I want your badge number.” The officer of whom he makes this request is not visible on camera. At 00:07 minutes, § 87(2)(b) again asks, “Can I have your badge number?” An officer who is not visible on camera replies to § 87(2)(b) that he will be provided with that information when the officers are done. At 00:22 seconds, § 87(2)(b) asks, “What is your name, sir?” The video does not clearly capture to whom § 87(2)(b) is talking. At 00:26 minutes, Det. Dejesus says, “I am going to give it to you in a minute. Give me a second.” In the background, Parole Officer Fernandez can be heard saying, “714.”



2018-04-09_16-20-01.mp4

In the second video above (BR 06), § 87(2)(b) is again filming from the porch. At 00:07 seconds, she re-enters § 87(2)(b) and appears to stand on the steps with § 87(2)(b). At 00:12 seconds, § 87(2)(b), who does not appear on camera, can be heard asking, “I want all your names, man. Your names and your numbers.” There is no response, and it is not clear from the video to whom § 87(2)(b) is directing this request.

In the third video (see aforementioned video file #2018-04-09_25-14 (BR 08)), at 00:01 minutes, § 87(2)(b) asks Det. Dejesus for his name. Det. Dejesus replies, “I will supply you this information at the end of the investigation.” At 00:18 seconds, Parole Officer Fernandez displays his badge to § 87(2)(b), who says, “I know, 714. I already got it.”



2018-04-09_16-27-42.mp4

In the fourth video above (BR 09), § 87(2)(b) appears to be filming on the porch. At 00:02 seconds, § 87(2)(b) yells, “Yo, you right there. Let me get your name.” The camera captures two officers, Det. Dejesus and Det. Drozniak, approaching a vehicle parked across the street from the house. Det. Dejesus stops and turns around, but Det. Drozniak walks behind the van. At 00:09, Det. Dejesus provides his name. § 87(2)(b) then asks, “Jesus, what is your badge number?” At 00:11 seconds, § 87(2)(b) yells, “Yeah, I want all that. Hold on. Let’s walk

there.” § 87(2)(b) and § 87(2)(b) approach Det. Dejesus. At 00:17 seconds, § 87(2)(b) says, “I want all that. I want your badge number. I want to see the warrant, too.” Det. Dejesus points across the street and says, “You have to speak to the guy over there.” It is unclear to whom Det. Dejesus is pointing. At 00:24 seconds, § 87(2)(b) cuts Det. Dejesus off, saying, “So your name is Jesus... You just witnessed them search my house without a warrant?” At 00:32 seconds, § 87(2)(b) walks away and approaches Det. Stuart and Parole Officer Fernandez. At 00:42 seconds, Det. Stuart walks away; § 87(2)(b) follows her, saying, “Excuse me, miss.” At 00:42 seconds, § 87(2)(b) yells in the background, “No, no, no, do not follow her. Fuck her.”

Det. Dejesus (BR 21) confirmed that § 87(2)(b) and § 87(2)(b) asked for his name, which he provided to them. Det. Dejesus did not remember them requesting his shield number. Det. Dejesus did not remember if he provided his shield number to them at any point. Det. Dejesus did not remember if § 87(2)(b) and § 87(2)(b) requested this information from any other officers on scene or not.

Det. Ribeiro (BR 17) claimed that § 87(2)(b) asked for his name and shield number while still inside § 87(2)(b) before § 87(2)(b) arrived. Det. Ribeiro responded, “My name is Detective Ribeiro. You have to wait outside. All of the information will be provided to you after the investigation is over.” Det. Ribeiro did not remember if he provided his shield number to § 87(2)(b) at any later point, though his shield was hanging around his neck on a chain and was clearly visible. Det. Ribeiro did not hear if § 87(2)(b) asked Det. Golat or Det. Corporan to provide their names, or if Det. Golat and Det. Corporan refused to provide them. Det. Ribeiro never heard § 87(2)(b) ask for his information.

Det. Corporan (BR 16) did not remember § 87(2)(b) or § 87(2)(b) asking him to provide his name or shield number, and denied refusing to provide this information. Det. Corporan said that after twisting his ankle, he exited § 87(2)(b) though he eventually returned to the house before § 87(2)(b) was apprehended.

Det. Golat (BR 18) denied that § 87(2)(b) or § 87(2)(b) asked for his name or shield number, and denied refusing to provide this information to them.

Det. Stuart (BR 19) and Det. Drozniak (BR 20) did not hear § 87(2)(b) or § 87(2)(b) ask for the names and shield numbers of any officer, nor did they refuse to provide it.

Parole Officer Fernandez (BR 15) did not remember if § 87(2)(b) or § 87(2)(b) asked the detectives in the house to provide their names or shields, nor did he hear any officers refuse to provide it.

Officers must clearly and courteously state their names and shield numbers or otherwise provide them to anyone who requests that they do so. Patrol Guide 203-09 (BR 34)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegation O** be closed as **alleged victim uncooperative**.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED] As such, it is recommended that **Allegations L through N** be closed as **unsubstantiated**.

Allegation (P) Abuse of Authority: Detective Tina Stuart spoke discourteously to § 87(2)(b) [REDACTED]

Allegation (Q) Abuse of Authority: Detective Tina Stuart threatened to arrest § 87(2)(b) [REDACTED]

Allegation (R) Abuse of Authority: Detective Carlos Corporan threatened to arrest § 87(2)(b) [REDACTED]

Allegation (S) Abuse of Authority: Detective Daniel Golat threatened to arrest § 87(2)(b) [REDACTED]

Allegation (T) Abuse of Authority: Detective Tina Stuart threatened to arrest § 87(2)(b) [REDACTED]

Allegation (U) Abuse of Authority: Detective Carlos Corporan threatened to arrest § 87(2)(b) [REDACTED]

Allegation (V) Abuse of Authority: Detective Daniel Golat threatened to arrest § 87(2)(b) [REDACTED]

Allegation (W) Abuse of Authority: Detective Tina Stuart threatened to arrest individuals.

Allegation (X) Abuse of Authority: Detective Carlos Corporan threatened to arrest individuals.

Allegation (Y) Abuse of Authority: Detective Daniel Golat threatened to arrest individuals.

§ 87(2)(b) [REDACTED] (BR 01) said that as he was escorted from § 87(2)(b) [REDACTED] to an unmarked van by Det. Stuart, Det. Golat, and Det. Corporan, Det. Stuart told § 87(2)(b) [REDACTED] who was standing nearby, “Shut the fuck up. Go back. § 87(2)(b) [REDACTED] knows why we are here.”

§ 87(2)(b) [REDACTED] (BR 11) did not himself make this allegation when contacted by the investigation, though again, as was previously discussed, he provided only an abbreviated telephone statement before becoming uncooperative with the investigation.

Det. Stuart, Det. Golat, and Det. Corporan also told § 87(2)(b) [REDACTED] and three friends of § 87(2)(b) [REDACTED] who § 87(2)(b) [REDACTED] could not identify, “We will arrest you all if you come any closer.”

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(b) (BR 01) made no such allegations on her own behalf; as such, no corresponding allegations have been pleaded on her behalf.

As was previously discussed, the investigation was unable to establish contact with § 87(2)(b) (BR 13).

The video footage § 87(2)(b) provided does not capture these allegations, and does not document the presence of any other civilians at the scene beyond § 87(2)(b) and § 87(2)(b).

All officers interviewed denied threatening to arrest any civilians, or hearing any officers do so.

§ 87(2)(g) it is recommended that **Allegations P through S** be closed as **victim uncooperative**. § 87(2)(g) it is recommended that **Allegations T through V** be closed as **alleged victim unavailable**. § 87(2)(g) it is recommended that **Allegations W through Y** be closed as **victim(s) unidentified**.

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 35).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 38).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 36).
- § 87(2)(b) has been party to one CCRB complaint (BR 37).
 - § 87(2)(b)
- Det. Tina Stuart has been a member of service for 16 years and has a total of 20 prior CCRB allegations stemming from 10 separate complaints. § 87(2)(g)
- Det. Jason Ribeiro has been a member of service for six years and has a total of five prior CCRB allegations stemming from four separate complaints. § 87(2)(g)
- Det. Carlos Corporan has been a member of service for seven years and has a total of five prior CCRB allegations stemming from three separate complaints. § 87(2)(g)
- Det. Daniel Golat has been a member of service for six years and has a total of 19 prior CCRB allegations stemming from seven separate complaints. § 87(2)(f)
 - § 87(4-b) § 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was not eligible for mediation.
- As of March 20, 2018, no Notice of Claim has been filed with respect to this incident (BR 43).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
- [REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]

Squad No.: 4

Investigator: _____

Signature _____ Print Title & Name _____ Date _____

Squad Leader: _____

Signature _____ Print Title & Name _____ Date _____

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____